

COUNTERFACTUAL RECORD — NEVER OCCURRED — NOT FILED ON ANY
ACTUAL DOCKET — ALL IDENTIFIERS ARE FICTIONAL

Counterfactual Clerk Order Releasing Mandate After Untimely Dismissal

Filed: April 1, 2026 Docket No. SYN-CA4-26-CV-4102-CF-NEVER-OCCURRED

United States Court of Appeals for the Fourth Circuit

Proceeding: Administrative release following jurisdictional dismissal.

The Court dismissed the appeal and entered judgment on March 11, 2026 because Asterglen's March 9 notice did not meet the March 6 deadline. The judgment expressly left the district court's supported partial judgment intact and stated that each side would bear its own costs.

The fourteen-day period for seeking rehearing under Federal Rule of Appellate Procedure 40 expired on March 25, 2026. No petition for panel rehearing or rehearing en banc was filed. The docket also reflects no motion to stay mandate, no order recalling or withholding issuance, and no amendment of the jurisdictional judgment.

Under Federal Rule of Appellate Procedure 41, the mandate issues seven days after the rehearing period expires when no qualifying event changes the date. Seven days after March 25 is April 1, 2026. The Clerk is therefore directed to release the mandate with this order and transmit it to district Docket No. SYN-NDWV-25-CV-0618-CF-NEVER-OCCURRED.

Entered April 1, 2026.

Clerk, United States Court of Appeals for the Fourth Circuit Authorized clerk designation